Do you need a DPIA?

A screening checklist for a data protection impact assessment. For each line tick yes, no or unknown. Write who you asked.

FOR
A controller in Italy or Germany deciding whether a processing needs a data protection impact assessment (DPIA), and the professional who advises it.

NOT COVERED
The DPIA itself. Other countries' national lists (Article 35(4)). A match on no list is not the same as no DPIA needed.

LAW AS OF
GDPR as in force 7 Nov 2026; WP 248 rev.01 of 4 Oct 2017; Garante provision 467 of 11 Oct 2018; DSK Muss-Liste version 1.1 of 17 Oct 2018

VERSION
1.0, 7 November 2026

PROCESSING _____ CONTROLLER _____

COMPLETED BY _____ DATE _____

Step 1. The three cases where Article 35(3) always requires a DPIA

Tick yes for any that applies. One is enough.

LINE	WHAT IT SAYS	YES	NO	?
Art. 35(3)(a) GDPR	You evaluate people systematically and extensively by automated means, including profiling, and decide things that affect them legally or similarly.	☐	☐	☐
Art. 35(3)(b) GDPR	You process special categories of data, or data about criminal convictions and offences, on a large scale.	☐	☐	☐
Art. 35(3)(c) GDPR	You monitor a publicly accessible area systematically and on a large scale (for example, CCTV of a street).	☐	☐	☐

Step 2. The nine criteria of WP 248 rev.01 (Article 29 Working Party, endorsed by the EDPB)

WP 248 (p. 11): "In most cases, a data controller can consider that a processing meeting two criteria would require a DPIA to be carried out." Count your yes answers. The Garante treats two or more as requiring one.

LINE	WHAT IT SAYS	YES	NO	?
Criterion 1 WP 248 rev.01	Evaluation or scoring, including profiling and predicting (for example work performance, economic situation, health, interests, reliability, behaviour, location or movements).	☐	☐	☐
Criterion 2 WP 248 rev.01	Automated decision-making with legal or similarly significant effect on people.	☐	☐	☐
Criterion 3 WP 248 rev.01	Systematic monitoring of people.	☐	☐	☐
Criterion 4 WP 248 rev.01	Sensitive data or data of a highly personal nature.	☐	☐	☐
Criterion 5 WP 248 rev.01	Data processed on a large scale.	☐	☐	☐
Criterion 6 WP 248 rev.01	Matching or combining datasets.	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
Criterion 7 WP 248 rev.01	Data about vulnerable people.	☐	☐	☐
Criterion 8 WP 248 rev.01	Innovative use, or applying new technological or organisational solutions.	☐	☐	☐
Criterion 9 WP 248 rev.01	The processing itself prevents people from exercising a right or using a service or a contract.	☐	☐	☐

Step 3. Italy: the Garante list (provision 467 of 11 October 2018, Annex 1)

The Garante says the list covers only processing under the consistency mechanism and is not exhaustive. Item 5 covers employee monitoring by video surveillance and geolocation. The clarification of the Garante: "systematic" and "non-occasional" in items 6, 11 and 12 mean large scale (WP 248 criterion 5).

LINE	WHAT IT SAYS	YES	NO	?
Item 1 Garante 467/2018	Evaluation or scoring of people on a large scale; or processing that profiles people or makes predictions about them, about aspects such as work performance, economic situation, health, preferences, reliability, behaviour, location or movements	☐	☐	☐
Item 2 Garante 467/2018	Automated processing to take decisions that produce legal effects or similarly significantly affect the person, including decisions that stop a person exercising a right or using a good or service or staying in a contract	☐	☐	☐
Item 3 Garante 467/2018	Systematic use of data to observe, monitor or control people, including data collected over networks, on-line or through apps, unique identifiers of users of information-society services over long periods, and metadata processing for organisational, budget, technology, network, anti-fraud, anti-spam or security reasons	☐	☐	☐
Item 4 Garante 467/2018	Large-scale processing of data of an extremely personal nature (WP 248, rev. 01): for example data tied to family or private life, data that affect the exercise of a fundamental right, or data whose breach has a serious impact on daily life	☐	☐	☐
Item 5 Garante 467/2018	Processing in employment through technology systems (including video surveillance and geolocation) that makes it possible to monitor employees' activity remotely	☐	☐	☐
Item 6 Garante 467/2018	Non-occasional processing of data about vulnerable people (minors, disabled people, elderly people, people with mental illness, patients, asylum seekers)	☐	☐	☐
Item 7 Garante 467/2018	Processing through innovative technologies (for example IoT, artificial intelligence, online voice assistants, wearable devices, proximity tracking such as wi-fi tracking), whenever at least one other WP 248 criterion also applies	☐	☐	☐
Item 8 Garante 467/2018	Processing that involves the exchange of data on a large scale between different controllers by electronic means	☐	☐	☐
Item 9 Garante 467/2018	Processing through interconnection, combination or comparison of information, including combining consumption data on digital goods with payment data (for example mobile payment)	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
Item 10 Garante 467/2018	Processing of special-category data (Art. 9) or of criminal-conviction and offence data (Art. 10) interconnected with other personal data collected for different purposes	☐	☐	☐
Item 11 Garante 467/2018	Systematic processing of biometric data used to identify a person uniquely, taking account of the volume of data and the duration or persistence of the processing	☐	☐	☐
Item 12 Garante 467/2018	Systematic processing of genetic data, taking account of the volume of data and the duration or persistence of the processing	☐	☐	☐

Fined, and Article 35 among the breaches

Deliveroo Italy: EUR 2.5 million (Garante, 2021). Impact assessment among the breaches, with the employment and remote-monitoring rules. 2021/IT/038 on Fino

Step 4. Germany: the DSK list for private bodies (the "must" list, Muss-Liste, version 1.1)

DSK is the German conference of the federal and state data protection authorities. Items 1 and 2 apply only together with at least one of seven named WP 248 criteria. Check the original wording of an item before you rely on it.

LINE	WHAT IT SAYS	YES	NO	?
Item 1 DSK Muss-Liste	Biometric data used to identify people uniquely, together with at least one of seven named WP 248 criteria (sensitive data and large scale do not count)	☐	☐	☐
Item 2 DSK Muss-Liste	Genetic data, together with at least one of seven named WP 248 criteria (sensitive data and large scale do not count)	☐	☐	☐
Item 3 DSK Muss-Liste	Large-scale processing of data covered by social, professional or special official secrecy	☐	☐	☐
Item 4 DSK Muss-Liste	Large-scale processing of data about where people are or stay	☐	☐	☐
Item 5 DSK Muss-Liste	Bringing together personal data from different sources on a large scale, for purposes for which not all the data were collected from the people themselves, with algorithms people cannot follow, to build a basis for decisions with legal or similar effects	☐	☐	☐
Item 6 DSK Muss-Liste	Mobile optical-electronic capture of personal data in publicly accessible areas, brought together centrally on a large scale	☐	☐	☐
Item 7 DSK Muss-Liste	Large-scale collection and publication or passing on of data used to assess people's behaviour and other personal aspects, which third parties can use for decisions with legal or similar effects	☐	☐	☐
Item 8 DSK Muss-Liste	Large-scale processing of data about employees' behaviour that can be used to assess their work with legal or other significant consequences	☐	☐	☐
Item 9 DSK Muss-Liste	Comprehensive profiles of people's interests, personal relationships or personality	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
Item 10 DSK Muss-Liste	Bringing together personal data from different sources on a large scale, for purposes not set in advance and for which not all the data were collected from the people themselves, with algorithms people cannot follow, to discover previously unknown links	☐	☐	☐
Item 11 DSK Muss-Liste	AI used to steer the interaction with people or to assess personal aspects of them	☐	☐	☐
Item 12 DSK Muss-Liste	Sensors or radio signals of people's own mobile devices used, beyond their intended use, to find where people are or how they move over a substantial period	☐	☐	☐
Item 13 DSK Muss-Liste	Automated analysis of video or audio recordings to assess people's personality	☐	☐	☐
Item 14 DSK Muss-Liste	Comprehensive profiles of people's movements and buying behaviour	☐	☐	☐
Item 15 DSK Muss-Liste	Anonymising special-category data (Art. 9), other than in individual cases, to pass it to third parties	☐	☐	☐
Item 16 DSK Muss-Liste	Special-category or criminal-offence data collected repeatedly through innovative use of sensors or mobile applications and processed by a central body, even if not large scale	☐	☐	☐
Item 17 DSK Muss-Liste	Special-category or criminal-offence data used by providers of new technologies to determine people's performance, even if not large scale	☐	☐	☐

Fined, and Article 35 among the breaches

Volkswagen: EUR 1.1 million (Lower Saxony, 2022). No data protection impact assessment (Art. 35), among other breaches. 2022/DE/050 on Fino

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What the result means

Any yes in Step 1, or a match in Step 3 or 4: a DPIA is required (Art. 35(3); national lists under Art. 35(4)). Two or more yes in Step 2: in most cases a DPIA is required (WP 248, p. 11). Article 35(1): the assessment is carried out before the processing starts.

WP 248 (p. 8): *"In cases where it is not clear whether a DPIA is required, the WP29 recommends that a DPIA is carried out nonetheless"*.

WP 248 (p. 12): where processing meets two or more criteria in Step 2 but the controller considers it not likely to result in a high risk, *"the controller should justify and document the reasons for not carrying out a DPIA, and include/record the views of the data protection officer"*.

The lists are not exhaustive. No match is not the same as no DPIA needed. Other national lists exist (Art. 35(4)); this checklist covers Italy and Germany only.

Sources

GDPR, Regulation (EU) 2016/679, Article 35 • Used for: Step 1 and the rule that the assessment comes before the processing

WP 248 rev.01, Guidelines on DPIA (Article 29 Working Party, endorsed by the EDPB) • Used for: Step 2, the nine criteria, and the pages quoted in "What the result means"

Garante, provision 467 of 11 October 2018, Annex 1 • Used for: Step 3, the Italian list

DSK, Muss-Liste for the non-public sector, version 1.1 • Used for: Step 4, the German list